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|   |                                                                          | <p>Subject Chair was in fact sold by Adriano Design.” (ROA 66—Mot. at p. 9.)</p> <p>The court finds Adriano Design has not met its initial burden of showing there is no triable issue of material fact and that it is entitled to judgment as a matter of law. The issue of whether Adriano Design is entitled to a sanction for the purported spoliation of the chair is not before the court. The only question to be determined is whether Adriano Design has met its initial burden of establishing that El Pollo Loco does not possess, and cannot reasonably obtain, needed evidence to show that the subject chair came from Adriano Design. In support of this “fact,” Adriano Design proffered evidence that: [1] an attorney for El Pollo Loco told Adriano Design’s attorney that “his client has been unable to locate the subject chair and has, in fact, disposed of it” (Akhavan Decl. at ¶ 5); and [2] the owner of Adriano Design “upon careful examination of the photographs of the subject chair” was “unable to identify the chair as being sold by Adriano Design” and “there are in fact other suppliers offering the identical chairs” (Michaels Decl. at ¶ 2).</p> <p>This evidence does not show El Pollo Loco has no evidence from which a factfinder could determine that the subject chair was obtained from Adriano Design. As Michaels points out in his declaration, there are “identical chairs” offered by other suppliers, so, even assuming the chair was in El Pollo Loco’s possession, presumably, additional evidence (e.g., an invoice) would be required to show that the chair was sold by Adriano Design. The court need not resolve the question of whether El Pollo Loco will ultimately present evidence that the subject chair was purchased from Adriano Design. Because Adriano Design did not meet its initial burden, the motion is denied.</p> <p>El Pollo Loco is ordered to give notice of the ruling.</p> |
| 6 | <p>Higby vs. Seabreeze Management Company, Inc.</p> <p>2023-01328795</p> | <p>Motion for Leave to File Cross Complaint</p> <p>Defendant Great Scott Tree Service, Inc. seeks an order permitting Great Scott leave to file a cross-complaint to assert causes of action against Brios Owners’ Association. (Code Civ. Proc., §§ 426.50, 428.10, subd. (b), and 428.50; <i>Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-99.)</p> <p>As an initial matter, the Court notes Great Scott’s proof of service states the server “caused the above-listed document(s) by hand to the office of the person(s) listed below.” (Declaration of Proof of Service, ROA No. 57 and 66.) However, Great Scott did not file any proof of service showing the papers were actually personally delivered on the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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|   |                                                                    | <p>parties. The Court notes the Clerk provided notice to all parties of the advanced hearing date. Subject to any objections regarding service, Great Scott's unopposed motion is granted.</p> <p>Great Scott submitted a copy of their proposed cross-complaint against a current nonparty, Briosa Owners' Association. (Cayaba Decl., Exhibit A.) Great Scott's claims in the proposed cross-complaint arise out of the same transaction, occurrence, or series of transactions or occurrences as the causes of action brought against Defendants. (Code Civ. Proc., § 428.10, (b); <i>Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38; Complaint; Cayaba Decl., Exhibit A.) Great Scott's seeks indemnity and contribution against Briosa Owners' Association, contending Briosa had a duty to notify the residents of the tree-trimming activity.</p> <p>Great Scott showed it acted in good faith. Great Scott was unaware of Briosa's potential liability at the time Great Scott filed an answer and only discovered the potential liability during recent discovery. (Cayaba Decl., ¶¶ 5-11 and 13, Exhibits B, C, D, E, and F.) Permitting leave to file the cross-complaint furthers the interests of justice, promotes judicial economy, and permits all claims to be adjudicated on the merits at the same time. There is no opposition to this motion. There is no showing of any prejudice.</p> <p>Great Scott's unopposed motion is granted. Great Scott shall electronically file and serve the proposed cross-complaint attached as Exhibit A to Attorney Cayaba's Declaration on all parties who have appeared within 10 days.</p> <p>Great Scott shall give notice.</p> |
| 7 | <p>Lomeli de Facio<br/>vs. Sodexo, Inc.<br/><br/>2020-01162342</p> | <p><b>1.</b> Motion to Compel Answers to Special Interrogatories<br/><b>2.</b> Motion to Compel Answers to Special Interrogatories<br/><b>3.</b> Motion to Compel Answers to Special Interrogatories<br/><b>4.</b> Motion to Compel Production<br/><b>5.</b> Motion to Compel Production<br/><b>6.</b> Motion to Compel Production</p> <p>Plaintiff Felixitas Lomeli De Facio's motions to compel Defendant Sodexo, Inc. to serve responses to her special interrogatories, sets 2 and 3, and requests for production of documents, sets 2 and 3, are continued to May 19, 2025 at 1:30 pm in Dept. C13.</p> <p>Plaintiff Felixitas Lomeli De Facio's motions to compel Defendant Anaheim Regional Medical Center to serve responses to her special</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |